

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Yahya Afridi, CJ
Justice Muhammad Ali Mazhar

CIVIL APPEAL NO.680 OF 2020

Against the judgment dated 07.05.2019
passed by Khyber Pakhtunkhwa Service
Tribunal, Peshawar Camp Court Swat in
Service Appeal No.642/2018.

Mian Abdul Saeed

...Appellant

Versus

Government of Khyber Pakhtunkhwa through
Secretary Elementary, KPK at Peshawar and
others

...Respondents

For the Appellant: Barrister Dr. Adnan, ASC

For the Respondents: Mr. Muzammil Khan, Addl.A.G.KPK

Date of Hearing: 20.11.2025

Judgment

Muhammad Ali Mazhar:- This Civil Appeal with leave of the Court is brought to challenge the judgment dated 07.05.2019 passed by Khyber Pakhtunkhwa Service Tribunal, Peshawar Camp Court, Swat in Service Appeal No.642/2018.

2. According to the narrative of the appellant, he was serving in BPS-17 as Secondary School Teacher (SST(G)) at Government High School Gokand, District Buner. He was indicted in a criminal case due to which he was suspended from his duties vide office order dated 31.12.2012. Since he was convicted by Additional District Judge, Buner vide judgment dated 19.12.2013, therefore he was removed from service on 06.07.2015. On appeal against conviction, the High Court, Mingora Bench (Dar-ul-Qaza), Swat, acquitted the appellant vide judgment dated 11.12.2017. After acquittal, the appellant filed an appeal for his re-instatement with

all back benefits. The departmental appeal was partly allowed vide order dated 19.04.2018 to the effect of reinstatement but the payment of back benefits was disallowed. Being aggrieved, the appellant approached the KPK Service Tribunal and filed Service Appeal No. No.642/2018 which was partially allowed and the intervening period was ordered to be treated as leave of the kind due.

3. At leave stage, the learned counsel for the appellant relied on Rule 54 of the Fundamental Rules and contended that if a civil servant is acquitted from the criminal charge, he is entitled to full pay as if he had not been dismissed or removed. The leave to appeal was granted by this Court vide Order dated 03.08.2020 to examine that if the appellant/petitioner has been honorably acquitted, whether he was entitled to payment of back benefits in terms of F.R. 54 for the period he had not served the department.

4. The learned counsel for the appellant argued though the trial court convicted the appellant, he was honorably acquitted by the Peshawar High Court, Mingora Bench, Dar-ul-Qaza Swat. It was further contended that on acquittal, the departmental authority was required to reinstate the appellant with all back benefits but he was only reinstated in the service and the incarceration period was considered leave without pay. He further averred that both the departmental authority and learned Tribunal deprived the appellant from his legal right of back benefits and failed to consider the case of appellant in terms of F.R. 54. It was further avowed that the petitioner was removed from service mainly on account of conviction without any departmental regular inquiry.

5. The learned Addl.A.G. argued that the appellant was involved in criminal case and on awarding conviction, he was removed from service and after his acquittal, his departmental appeal was accepted to the extent of his reinstatement and since the appellant never served in the intervening period, therefore, he was not entitled to claim back benefits and the department rightly treated his absence as leave without pay. He further argued that out that

Section 17 of Khyber Pakhtunkhwa Civil Servants Act, 1973 empowers the competent authority to grant or not to grant the back benefits and even the compliance of F.R. 54 is not mandatory to grant full back benefits, however, in literal terms, the learned Addl.A.G did not controvert the applicability of F.R. 54 in the province of Khyber Pakhtunkhwa.

6. Heard the arguments. The record reflects that the appellant was arrested and indicted pursuant to FIR No.491 dated 10.09.2012 lodged under Sections 302/324/147/148/149 PPC, registered at Police Station Daggar, Buner. On account of registration of FIR, he was suspended from duty with effect from 30.09.2012 vide notification dated 31.12.2012 with the rider that the appellant shall be allowed to the subsistence allowance from date of his arrest. On the basis of the conviction in the aforesaid FIR, the appellant was removed from service vide Office Order dated 06.07.2015 but his removal from service was made effective from the date of conviction i.e. 19.12.2013. After acquittal from criminal case, the appellant filed the departmental appeal for reinstatement which was allowed vide order dated 19.04.2018 and as a consequence thereof, the appellant was reinstated in service with immediate effect and the intervening period from the date of conviction was treated as leave without pay.

7. The bone of contention in the case is whether on acquittal, the appellant on his reinstatement was entitled to be treated in the light of F.R. 54 or not? The appellant was acquitted by the High Court vide judgment dated 11.12.2017. Though his departmental appeal was allowed, this was done without considering the exactitudes of FR 54 and whether this crucial aspect was ignored by the learned Tribunal. The Fundamental Rules came into effect from 1st January, 1922. For ease of reference, F.R. 54, is reproduced as under:-

"F.R. 54- Where a Government Servant has been dismissed or removed is reinstated, the revising or appellate authority may grant to him for the period of his absence from duty-

(a) if he is honourably acquitted, the full pay to which he would have been entitled if he had not been dismissed or removed and, by an order to be separately recorded, any allowance of which he was in receipt prior to his dismissal removal; or

(b) if otherwise, such portion of such pay and allowances as the revising or appellate authority may prescribe.

In a case falling under clause (a), the period of absence from duty will be treated as a period spent on duty.

In a case falling under clause (b), it will not be treated as a period spent on duty unless the revising appellate authority so directs.

Explanation.- In this rule, "revising authority" means the "authority" or "authorised Officer" as defined in the Government Servants (Efficiency and Discipline) Rules, 1973, who passes the final order on the case and not the authority who passes an order on appeal".

8. The Fundamental Rules are aimed to establish a framework for the governance and administration of civil service for uniform procedures and regulations; augmenting the efficacy of administrative functions within the government; ensuring that civil servants are accountable for their deeds and actions and upholding and fostering professional ethos among civil servants. In the context of present case, F.R. 54 has the direct nexus which expounds that if a government servant is honourably acquitted, and reinstated in service, he shall be granted the full pay to which he would have been entitled if he had not been dismissed or removed, and, by an order to be separately recorded, any allowance of which he was in receipt prior to his dismissal or removal with a stipulation that period of absence from duty will be treated as a period spent on duty.

9. Even in the Civil Service Regulations (C.S.R.) which contain Government instructions for regulating the service conditions (pay, leave, pension, other allowances, etc.) of the Government employees in the civil departments i.e. Federal Civil Servants in Pakistan, Chapter X, germane to the "Officers Dismissed, Removed, Suspended, or Imprisoned", it is clearly provided in C.S.R. 193 (b) that when the suspension of a Government servant is held to have been unjustifiable or not wholly justifiable; or when a Government servant who has been dismissed, removed or

suspended is reinstated, the revising or appellate authority may grant to him for the period of his absence from duty (a) if he is honourably acquitted, the full salary to which he would have entitled if he had not been dismissed, removed or suspended and by an order to be separately recorded any allowance of which he was in receipt prior to his dismissal, removal or suspension. It is further provided that in a case falling under clause (a) the period of absence from duty will be treated as a period spent on duty. Docile to the C.S.R. 193, a "Note" is also attached which puts emphasis on that this rule is absolute and unconditional and so the question of lien does not arise in the case of Government Servant who is dismissed from service and reinstated on appeal when the period of unemployment between the date of dismissal and reinstatement is declared by the appellate authority as duty.

10. Last but not least, it is clearly provided under Article 241 of the Constitution of Islamic Republic of Pakistan 1973, (Constitution) that until the appropriate Legislature makes a law under Article 240, all rules and orders in force immediately before the commencing day shall, so far as consistent with the provisions of the Constitution, continue in force and may be amended from time to time by the Federal Government or, as the case may be, the Provincial Government.

11. In tandem, Section 17 of the Khyber Pakhtunkhwa Civil Servants Act, 1973, provides that a civil servant appointed to a post shall be entitled, in accordance with the rules, to the pay sanctioned for such post and according to the second proviso, it is further accentuated that where a civil servant has, under an order which is later set aside, been dismissed or removed from service or reduced in rank, he shall, on the setting aside of such order, be entitled to such arrears of pay as the authority setting aside such order may determine.

12. The impact and corollaries of Fundamental Rule 54 have been discussed by this Court in extenso in the following cases:-

1. Dr. Muhammad Islam Vs. Government of N.W.F.P. through Secretary, Food, Agriculture, Livestock and Cooperative Department, Peshawar and 2 others (1998 SCMR 1993). If the benefit of doubt has been given to the accused, it cannot be said that charge has been established by the prosecution. Even where benefit of doubt has been extended to accused, he shall be deemed to have been honourably acquitted. The appellant's acquittal of the charge of misconduct and his consequential reinstatement in service entitled him to full pay and remuneration under F.R. 54 (a) of the Rules.

2. Superintending Engineer Gepco, Sialkot Vs Muhammad Yousaf (2007 SCMR 537). While following the dictums laid down vis-à-vis FR-54 in the cases of Dr. Muhammad Islam v. Government of N.-W.F.P. (1998 SCMR 1993); Rashid Mahmood v. Additional Inspector General of Police (2002 SCMR 57) and Muhammad Iqbal Zaman v. Superintending Engineer, Southern Irrigation Circle, Bannu (1999 SCMR 2870), it was held that on acquittal of civil servant the Service Tribunal had rightly directed the authorities to treat him on duty and give him all financial benefits during the period of his confinement in custody on account of his involvement in criminal case.

3. Rahimullah Khan Vs Deputy Postmaster General, Southern Postal Region, Khyber Pakhtunkhwa and others (2024 SCMR 541). While setting aside the judgment of service Tribunal it was held that in the case of reinstatement of dismissed or removed employee, the employee on his acquittal was entitled to full pay in terms of F.R. 54 of the Fundamental Rules and on his absence from duty was treated as a period spent on duty.

4. Muhammad Sharif versus Inspector General of Police, Punjab, Lahore. (2021 SCP 118 = 2021 SCMR 962). It was held that a civil servant once exonerated from the charges would stand restored in service as if he were never out of it and would be entitled to back benefits.

5. Tahir Kazmi versus Inspector General of Police, Punjab, Lahore (2025 SCP 237). It was held that the reinstatement is not an empty gesture but a restorative act, fully aligned with Articles 9, 10A, 14, and 25 of the Constitution. To reinstate a civil servant without restoring their status, entitlements, and dignity is to offer a remedy that fails to remedy and justice that falls short of being just. Once reinstated, the petitioner was entitled to be treated as if he had never left service. Denial of back benefits violate Articles 4, 9, 14, and 25 of the Constitution.

13. It is an admitted position in the case in hand that when FIR was lodged against the appellant, he was initially suspended from duty with the payment of subsistence allowance and on his conviction, he was removed from service. The sole ground of his removal was his conviction and when he was acquitted by the learned High Court in appeal, he was reinstated in service without according the benefit of F.R. 54. At this juncture, we would also like to clarify that the benefit of F.R. 54 is not allowable automatically or ipsi dixit but it is subject to the reinstatement of

an employee on acquittal from criminal cases after dismissal or removal from service. So for all intent and purposes, the key point or dominant intent of the aforesaid rule comes into play once the reinstatement is accorded by an order of revising or appellate authority by fiction of law. What we have perceived is that no reasons were jotted down by the revising/appellate authority in the reinstatement order passed in exercise of powers conferred under Khyber Pakhtunkhwa Government Servants (Efficiency and Discipline) Rules, 2011, as to why the appellant was not entitled to the back benefits in terms of F.R. 54 or as to why intervening period with effect from 19.12.2013 was treated as leave without pay and not with pay. All the more so, the competent authority also failed to determine arrears of pay in terms of Section 17 of the Khyber Pakhtunkhwa Civil Servants Act, 1973 while setting aside the order of removal from service and according reinstatement to the appellant.

14. It is also gleaned from the record that at departmental level, neither any show cause notice was issued nor any inquiry was conducted before removal from service. Rather, the whole departmental action was solely based on the indictment and then acquittal of the appellant in a criminal case without conducting any internal disciplinary proceedings by the Directorate of Elementary & Secondary Education, Khyber Pakhtunkhwa Peshawar. The foremost step that triggers the enquiry is the show cause notice and statement of allegations sent to the accused person to respond for further proceedings and consideration. The purpose of a show cause notice is to solicit a response explaining, with reasonable cause, why a specific action on a particular act of misconduct should not be taken against the employee. In the departmental inquiries, the standard of proof is based on the balance of probabilities or preponderance of evidence while in the criminal prosecution, the prosecution has to prove the guilt of accused beyond any reasonable doubt. Both have distinctive characteristics and attributes with regard to the standard of proof that cannot be mixed together rather both can continue independently and concurrently in accordance with the law but in

this case, no opportunity was afforded to the appellant before dismissal from service through any disciplinary proceedings by the department which was sheer violation of Article 10A of the Constitution and due process of law.

15. As a result of the above discussion, this Civil Appeal is allowed and the impugned judgment of the learned Service Tribunal is set aside. Although the Competent Authority (Directorate of Elementary & Secondary Education, Khyber Pakhtunkhwa Peshawar) had reinstated the appellant in service with immediate effect vide Office Order dated 19.04.2018, however by means of this judgment, the competent authority is directed to reconsider the case of the appellant and pass a fresh order to the extent of granting back benefits to the appellant in terms of Fundamental Rule 54 within a period of two months from the date of receiving the copy of this judgment.

Chief Justice

Judge

ISLAMABAD

20.11.2025

Khalid

Approved for reporting